

ELIZABETH II



1967 CHAPTER xxviii

An Act to confer further powers upon the mayor, aldermen and burgesses of the borough of Guildford; to make further provision with respect to the health, local government and improvement of the borough; to provide for the transfer of the Godalming Navigation to the National Trust for Places of Historic Interest or Natural Beauty; and for other purposes.

[21st July 1967]

WHEREAS—

(1) The borough of Guildford (hereinafter referred to as “the borough”) is a borough under the management and local government of the mayor, aldermen and burgesses of the borough (hereinafter referred to as “the Corporation”):

(2) Certain land within the borough known as Foxenden Quarry is held by the Corporation by virtue of a conveyance dated 7th July, 1914, and made between Elizabeth Good Williamson, William Williamson and Martin Williamson of the one part and the Corporation of the other part:

1875 c. 55.
1890 c. 59.
1907 c. 53.

(3) By the said conveyance the Corporation covenanted (*inter alia*) that they would not use or permit to be used part of the said land (hereinafter referred to as "the said part") for any purpose other than as public walks and pleasure grounds maintained and managed by them by virtue of section 164 of the Public Health Act, 1875, section 44 of the Public Health Acts Amendment Act, 1890, and section 76 of the Public Health Acts Amendment Act, 1907, or any Act amending such provision:

(4) Since the transfer of the said land to the Corporation the public and the inhabitants at large have from time to time had access to the said part and the use and enjoyment thereof as a public walk or pleasure ground or otherwise, and by virtue of such access or use and enjoyment have acquired, or may be said to be entitled to, a beneficial interest in the said part:

1960 c. 16.

(5) It is expedient in the interests of the borough and the inhabitants thereof that the Corporation should be enabled to appropriate and use a portion of the said part for the purpose of their functions under section 81 of the Road Traffic Act, 1960, free from any beneficial interest or any other right therein of the public or the inhabitants at large:

(6) It is expedient to transfer certain common or commonable rights over a portion of Stringers Common in the parish of Worplesdon in the rural district of Guildford in the administrative county of Surrey, which is vested in the Corporation to other land in the neighbourhood of the said common:

1904 c. cxxvi.

(7) By a provisional order for the regulation of Merrow Downs confirmed by the Commons Regulation (Merrow) Provisional Order Act, 1904, provision was made for the local management by a body of conservators of Merrow Downs situate in the parish of Merrow in the county of Surrey:

(8) By the Surrey Review Order, 1933, the borough was extended to include, *inter alia*, the portion of the said parish of Merrow in which Merrow Downs are situate:

(9) The Lord of the Manor of Temple Court and Merrow has sold his interest in Merrow Downs to the Corporation and the said body of conservators have agreed that their powers should be exercisable by the Corporation and accordingly it is expedient that the said body of conservators should be dissolved and that their property, rights, powers, liabilities and obligations should be transferred to the Corporation and that further powers should be conferred on the Corporation in respect of Merrow Downs:

(10) By the Guildford Corporation Act, 1938, the Corporation 1938 c. lxxxvi. are empowered to acquire the navigation authorised by an Act passed in the thirty-third year of the reign of His Majesty King George II intituled “ An Act for extending and continuing the Navigation of the River Wey, otherwise Wye, in the County of Surry, to the Town of Godalming, in the said County ”:

(11) It is expedient to empower the Corporation to transfer the said navigation to the National Trust for Places of Historic Interest or Natural Beauty:

(12) It is expedient that further and better provision should be made with reference to streets and the health, local government and improvement of the borough and that the powers of the Corporation in regard thereto should be enlarged and extended as in this Act provided:

(13) It is expedient that the other provisions contained in this Act should be enacted:

(14) The purposes of this Act cannot be effected without the authority of Parliament:

(15) Plans showing the lands to be used or dealt with in accordance with the provisions of this Act and a book of reference relating thereto were duly deposited in the office of the Clerk of the Parliaments, House of Lords, and in the Private Bill Office, House of Commons, and with the clerk of the county council of the administrative county of Surrey, which plans and book of reference are in this Act referred to respectively as the deposited plans and book of reference:

(16) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, 1933 c. 51. have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

1. This Act may be cited as the Guildford Corporation Act 1967. Short title.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Division of
Act into
Parts.

PART I
—*cont.*

Part III.—Streets.

Part IV.—Parks, cemeteries and other municipal property.

Part V.—Public order and public safety.

Part VI.—Marrow Downs.

Part VII.—Finance and miscellaneous.

Part VIII.—General.

Interpretation. 3.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Public Health Act, 1936 c. 49. 1936, have the same respective meanings, unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—
1933 c. 51. “the Act of 1933” means the Local Government Act, 1933;
“the Act of 1936” means the Public Health Act, 1936;
1959 c. 25. “the Act of 1959” means the Highways Act, 1959;
1960 c. 16. “the Act of 1960” means the Road Traffic Act, 1960;
1962 c. 38. “the Act of 1962” means the Town and Country Planning Act, 1962;
“the appointed day” for the purposes of Part VI (Marrow Downs) of this Act means 1st April, 1968, and for the purposes of any other provision in this Act has the meaning assigned to it by section 56 (The appointed day) of this Act;
“the borough” means the borough of Guildford;
“burial ground” includes a cemetery;
“claimed county road” has the same meaning as in section 4 of the Act of 1959;
“contravention” includes a failure to comply and “contravene” shall be construed accordingly;
“the Corporation” means the mayor, aldermen and burgesses of the borough;
“the council” means the council of the borough;
“the county council” means the county council of the administrative county of Surrey;
“county road” has the same meaning as in section 295 of the Act of 1959;
“daily fine” means a fine for each day on which an offence is continued after conviction;

“enactment” includes an enactment in this Act, or in any general or local Act and any order, byelaw, scheme or regulation for the time being in force within the borough;

PART I
—cont.

“land” includes water and any interest in land or water and any easement or right in, to or over land or water;

“magistrates’ court” has the same meaning as in subsection (1) of section 124 of the Magistrates’ Courts Act, 1952;

1952 c. 55.

“the Minister” means—

(a) for the purposes of Part III (Streets) of this Act, the Minister of Transport; and

(b) in all other cases, the Minister of Housing and Local Government;

“the town clerk” means the town clerk of the borough.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

LANDS

4.—(1) The Corporation and any person having an estate or interest in any land within the borough may enter into an agreement which may provide for all or any of the following:—

Agreements
with
developers.

(a) determining the order in which development of that land shall be carried out as between the different parts of that land and as between the different parts of the development of any part of that land;

(b) determining the time by which development of that land shall be completed or the times by which the parts of that development shall be completed;

(c) providing that the estate or interest of that person in that land shall not be conveyed, leased or assigned except by way of mortgage or legal charge to any person unless the Corporation shall have first satisfied themselves that that person has or can command sufficient financial resources to carry out development of that land and to implement all the provisions of the agreement;

(d) the dedication to the public of rights of way over that land or over a part or parts of any building or structure which is comprised in the development and the maintenance and cleansing of the public rights of way so

PART II
—cont.

dedicated including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated and the maintenance of any support of the public rights of way so dedicated;

(e) arrangements relating to the provision, maintenance or use of facilities for the parking of vehicles for or in connection with development of that land;

(f) any other related or consequential matters.

(2) (a) An agreement entered into under the preceding subsection may contain positive and negative covenants and whether they be positive or negative and notwithstanding that they may not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee they shall, if registered in the local land charges register, be enforceable by the Corporation against the covenantor and all persons deriving title by, through or under the covenantor.

(b) In the event of the person who has entered into an agreement under the preceding subsection or any person deriving title by, through or under him failing to perform any of the positive covenants contained in the agreement the Corporation may after giving not less than twenty-one days' notice of their intention so to do enter on the land and do the work in default and the expenses incurred by the Corporation in so doing shall be recoverable by them from the person in default.

(c) Except as may be expressly provided in the agreement an agreement entered into under the preceding subsection shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

(3) The Corporation may take or acquire shares or other securities in any company incorporated in the United Kingdom with which an agreement is entered into under this section.

(4) In this section "development" has the same meaning as in section 12 of the Act of 1962.

Undertakings
and agree-
ments binding
successive
owners.

5.—(1) Every undertaking given by or to the Corporation to or by the owner of a legal estate in land, and every agreement made between the Corporation and any such owner, being an undertaking or agreement—

(a) given or made under seal either on the passing of plans or otherwise in connection with the land; and

(b) expressed to be given or made in pursuance of this section; shall be binding, not only upon the Corporation and any owner joining in the undertaking or agreement, but also upon the successors in title of any owner so joining and any person claiming through or under them.

(2) Such an undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926.

1925 c. 22.
1926 c. 11.

(3) Any person upon whom such an undertaking or agreement is binding shall be entitled to require from the Corporation a copy thereof.

6.—(1) Notwithstanding anything contained in any other enactment or any rule of law or any covenant in the conveyance the Corporation may appropriate and use the part of Foxenden Quarry delineated on the deposited plans and thereon numbered 1 for the purpose of the Corporation's functions under section 81 of the Act of 1960 free from any beneficial interest or any other right therein of the public or the inhabitants at large.

As to
Foxenden
Quarry.

(2) In this section—

“the conveyance” means the conveyance dated 7th July, 1914, and made between Elizabeth Good Williamson, William Williamson and Martin Williamson of the one part and the Corporation of the other part, whereby Foxenden Quarry was conveyed to the Corporation;

“Foxenden Quarry” means the land known as Foxenden Quarry situate in York Road in the borough.

7.—(1) In this section—

“the blue land” means the land forming part of Stringers Common delineated and coloured blue on the deposited plans and thereon numbered 2;

As to
Stringers
Common.

“the red land” means the land delineated and coloured red on the deposited plans.

(2) As from the passing of this Act—

(a) all common or commonable rights on or over the blue land shall be transferred to the red land; and

(b) the blue land shall be held free from all common or commonable rights and the red land shall be subject to the common or commonable rights of the persons, if any, who immediately before the passing of this Act were entitled to exercise those rights over the blue land.

PART II
—*cont.*

Correction of
errors in
deposited
plans and
book of
reference.

8.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Corporation after giving not less than ten days' notice to the owner, lessee and occupier of the land in question, may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office House of Commons and with the clerk of the county council and with the town clerk and with every clerk of a local authority with whom a copy of the deposited plans, or of so much thereof as includes the land to which the certificate relates, has been deposited in accordance with the Standing Orders of the Houses of Parliament, or who has the custody of any such copy so deposited and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Corporation to take the land in accordance with the certificate.

(4) A person with whom a copy of a certificate is deposited under this section shall keep it with the other documents to which it relates.

PART III

STREETS

New streets

Prohibition of
building until
street defined.

9.—(1) Where a plan and sections of a new street have been deposited with the Corporation in pursuance of new street byelaws and have been approved by them, no person shall without their consent begin to erect a building on land abutting on the street until he has defined by posts, or in some other suitable manner, the approved line, width and level of so much of the street as abuts on any land which will be occupied as the site of, or in connection with, the building.

(2) Where the approved width of a new street has been defined as aforesaid, no person shall begin to erect a building or structure nearer to the centre of the street than the line of the posts or other marks by which the width has been so defined.

(3) If any person contravenes the provisions of either of the foregoing subsections he shall be liable to a fine not exceeding twenty pounds; and the Corporation may—

PART III
—cont.

(a) in the case of a contravention of subsection (1), define as aforesaid the approved line, width and level of the new street; and

(b) in the case of a contravention of subsection (2), remove the building or structure;

and in either case recover the expenses of so doing from that person.

10.—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of new street byelaws are approved by them, they may by notice prohibit the erection of any building on land abutting on the street until the carriageway of the street has been constructed, and the street has been sewered, in accordance with the said byelaws: Prohibition of building until street formed and sewered.

Provided that, where the plan shows that the street will exceed 100 yards in length, the Corporation shall divide the street for the purpose of the notice into lengths not exceeding 100 yards; and each such length shall for that purpose be treated as a separate street.

(2) Such a notice shall be given to the person by whom or on whose behalf the plan and sections were deposited; and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes the provisions of such a notice he shall be liable to a fine not exceeding twenty pounds; and the Corporation may construct the carriageway and works of sewerage which should have been constructed, and recover the expenses of so doing from that person.

(4) This section shall have effect subject to the provisions of the Land Charges Act, 1925, as amended by the Law of Property 1925 c. 22. (Amendment) Act, 1926, with respect to the avoidance of any such notice for want of registration as a local land charge. 1926 c. 11.

(5) The execution of any works under the provisions of this section shall not relieve any person from any liability under any enactment relating to private street works for the time being in force in the borough.

11.—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of new street byelaws are approved by them, they may, for the purpose of securing adequate means of communication between the new street and any other street, whether existing or intended, by notice prohibit the erection Access to new street.

PART III
—cont.

or retention of any structure at either end of the new street on land belonging, at the time of the deposit, to the owner of the land upon which the new street is proposed to be constructed or laid out:

Provided that no such notice shall affect any structure existing at the time of the deposit until both the new street and that other street have become highways maintainable at the public expense.

(2) Such a notice shall be given to the person by whom or on whose behalf the plan and sections were deposited; and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes a notice under this section he shall be liable to a fine not exceeding twenty pounds; and the Corporation may remove the structure and recover the expenses of so doing from that person.

1925 c. 22.
1926 c. 11. (4) This section shall have effect subject to the provisions of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926, with respect to the avoidance of any such notice for want of registration as a local land charge.

Rounding or
splaying off
corners at
street
junctions.

12.—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of new street byelaws are approved by them, they may, for the purposes of safety, by notice require that the corners formed at the junction of the new street with another street, whether existing or intended, but not being a trunk road, shall be rounded or splayed off in such manner as may be specified in the notice.

(2) Such a notice shall be given to the person by whom or on whose behalf the plan and sections were deposited, and the requirements thereof shall be binding on successive owners of the land to which it relates.

1961 c. 33. (3) Any person who suffers loss by the exercise of powers conferred by this section may recover from the Corporation compensation for the damage to be determined in case of dispute by the Lands Tribunal, and, so far as compensation is properly to be calculated by reference to the depreciation of the value of his interest in the land, rules 2 to 4 of the rules set out in section 5 of the Land Compensation Act, 1961, shall apply.

(4) If any person lays out or constructs a new street otherwise than in compliance with a notice in respect of the street under this section, he shall be liable to a fine not exceeding twenty pounds; and the Corporation may do such work as may be necessary to comply with the notice and recover the expenses of so doing from that person.

(5) This section shall have effect subject to the provisions of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926, with respect to the avoidance of any such notice for want of registration as a local land charge.

PART III
—cont.
1925 c. 22.
1926 c. 11.

13.—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of new street byelaws are approved by them, they may, for the purpose of securing the proper laying out or development of any estate through which the street is to run, by notice require that such provision shall be made—

Adjustment of boundaries of estates in connection with streets.

- (a) for adjusting and altering the boundaries of the estate, and any other estate adjacent or near thereto, and for effecting exchanges of land in connection therewith; and
- (b) for the removal, modification or imposition of covenants, restrictions and conditions attaching to the land comprised in the estate, or any such other estate;

as may be necessary or desirable having regard to the line and layout of the new street.

(2) The notice shall be given to the owners of all the estates affected thereby.

(3) The powers conferred by subsection (1) of this section may also be exercised on the approval of a plan for the widening of an existing street or for the widening or adaptation of a road, footpath or way so as to form a new street.

(4) The provision so to be made and the terms and conditions upon which it is to be made shall, failing agreement between the Corporation and the persons interested in the respective estates, be determined by arbitration.

(5) An agreement or award made under this section may provide for the payment of money by the Corporation; but no such award shall provide for the payment of money by any other person without his consent.

(6) An award made under this section shall operate to effect any adjustment or alteration of boundaries or exchange of land, and any removal, modification or imposition of covenants, restrictions and conditions attaching to any land, which may be provided for by the award, and shall be duly stamped accordingly.

(7) The costs and expenses of any arbitration under this section shall, unless and except in so far as the award may otherwise provide, be paid by the Corporation.

PART III
—cont.

(8) Any land or money received by any person in respect of an adjustment or alteration of boundaries or exchange of land under this section shall be held by him subject to the same trusts, if any, as the land exchanged therefor.

(9) Any land received by any person as aforesaid shall also be held subject to the same covenants, restrictions and conditions, if any, so far as the same are applicable, as the land exchanged therefor; and any such covenants, restrictions or conditions shall be deemed to be applicable unless otherwise provided in an agreement or award made under this section.

(10) The Corporation may purchase land by agreement for the purposes of this section and, until they dispose of the land or appropriate it for any other purpose, may manage the land in such manner as they think fit.

(11) In this section “estate” includes any parcel of land.

Improvement of streets

Trees, grass
verges and
gardens.

14.—(1) Subject to the provisions of this section the Corporation shall have power, in any street vested in them, or on any land acquired by them for the construction or improvement of any such street or for preventing the erection of buildings detrimental to the view from the street—

- (a) to plant trees or shrubs or place containers in which to grow trees or shrubs;
- (b) to attach containers for plants to posts or standards provided by the Corporation or, with the consent of the owner thereof, to any other posts or standards;
- (c) to lay out grass verges or gardens;
- (d) to provide guards or fences, and otherwise do anything expedient, for the maintenance or protection of such trees, shrubs, containers, grass verges or gardens;
- (e) to cut down any such tree or shrub, to remove any such container, guard or fence and to abolish any such grass verge or garden or enlarge or diminish the area thereof;
- (f) by notice to prohibit persons from entering upon, or causing or permitting horses, cattle or vehicles to enter upon, any grass verge laid out under this section and maintained in an ornamental condition or mown, or any garden so laid out;
- (g) by notice to prohibit the playing of any game on any such grass verge as aforesaid which is likely to cause damage thereto.

(2) Any such notice as is referred to in paragraph (f) or paragraph (g) of the foregoing subsection shall be conspicuously posted on, or in proximity to, the grass verge or garden to which it relates.

(3) If any person (except in a case of emergency) contravenes a notice so posted in pursuance of the said paragraph (f) or if any person contravenes a notice so posted in pursuance of the said paragraph (g) he shall be liable to a fine not exceeding five pounds.

(4) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(5) Section 82 of the Act of 1959 shall cease to apply to highways vested in the Corporation or to any such land as is referred to in subsection (1) of this section; and anything done by the Corporation under that section or under section 1 of the Roads Improvement Act, 1925, with respect to such highways or land 1925 c. 68. before the passing of this Act shall be deemed to have been done under this section.

(6) Nothing in this section shall affect the duty of the Corporation to provide a footway or grass or other margins under section 67 or section 70 of the Act of 1959.

(7) (a) The Corporation may exercise the powers conferred by this section in—

- (i) a street being a trunk road with the consent of the Minister;
- (ii) a street being a county road, other than a claimed county road, with the consent of the county council;

notwithstanding that the street is not vested in the Corporation.

(b) Any consent required by this subsection shall not be unreasonably withheld but may be given subject to a condition that the Corporation, at their own expense, shall remove anything placed in a street under the powers conferred by this section if reasonably required to do so by the person giving the consent.

(8) (a) Where the Corporation carry out works under any enactment relating to private street works, they may, with the consent of the owners of premises fronting, adjoining or abutting on the part of the street in which the works are carried out, exercise the powers conferred by this section in that part; and the expenses incurred in so doing shall be deemed part of the expenses of carrying out the works.

PART III
—cont.

(b) The reference in this subsection to the consent of the owners of the said premises is a reference to the consent of the majority of them where the rateable value of the premises owned by the persons consenting is greater than the rateable value of the rest of the said premises.

*Protection and repair of streets*Erection of
structures at
street corners.

15.—(1) No person shall place or erect in the borough any structure on land adjacent to a street at, or within a distance of 10 yards from, the corner of any street unless he has given to the Corporation notice of his intention so to do accompanied by plans and particulars of the structure, and the Corporation have approved the placing or erection thereof under this section:

Provided that this subsection shall not apply to any structure being development which, by virtue of the Act of 1962, and any development order for the time being in force thereunder, may be undertaken only with permission granted on an application, or being an advertisement which may be displayed only with consent granted on an application under regulations for the time being in force under section 34 of that Act.

(2) Within five weeks from the receipt of such a notice from any person the Corporation may give him notice that they disapprove the placing or erection of the structure, or that they approve it only subject to such conditions or to such modifications of the plans and particulars submitted to them as may be specified in the notice:

Provided that a notice shall not be given under this subsection except on the ground that the structure would, by obstructing the view of foot-passengers or drivers of vehicles, constitute a danger to the traffic on the street upon, adjoining or near to which it is proposed to be placed or erected, or, as the case may be, would constitute such a danger unless placed or erected subject to the conditions or modifications specified in the notice.

(3) The Corporation may at any time within the said five weeks give notice that they approve the placing or erection of the structure in accordance with the plans and particulars submitted to them, and, if within the said five weeks the Corporation have not given notice under the last foregoing subsection, they shall be deemed for the purposes of this section to have approved the placing or erection of the structure in accordance with those plans and particulars.

(4) Where the Corporation have approved the placing or erection of the structure, it shall not be placed or erected—

(a) otherwise than in accordance with the plans and particulars submitted as aforesaid; or

(b) if notice has been given under subsection (2) of this section of any conditions or modifications, otherwise than in accordance with those conditions and with the said plans and particulars as modified by the notice.

PART III
—cont.

(5) Any person giving notice under subsection (1) of this section who is aggrieved by a notice given under subsection (2) thereof may, within twenty-one days from the service of the last-mentioned notice, appeal to the Minister, who may make such order as he thinks fit and whose decision shall be final.

(6) If any person places or erects any structure in contravention of the foregoing provisions of this section he shall be liable to a fine not exceeding five pounds.

(7) The foregoing provisions of this section shall not apply to a temporary structure required to be placed or erected at, or within a distance of 10 yards from, the corner of a street for the purpose of the construction, demolition, alteration, repair or maintenance of any building or works:

Provided that, if any such temporary structure is not removed when the construction, demolition, alteration, repair or maintenance of the building or works is completed, the person who placed or erected it shall be liable to a fine not exceeding five pounds.

(8) Where a person is convicted of an offence under either of the two last foregoing subsections, the court by which he is convicted may order him, within such time as may be fixed by the order, to remove the structure in respect of which he was convicted; and if he fails to comply with the order—

- (a) he shall be liable to a fine not exceeding twenty shillings for each day on which the failure continues; and
- (b) the Corporation after giving him notice of their intention so to do may remove the structure and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a fine for any day after that on which the Corporation have given him notice of their intention to remove the structure.

(9) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 81 of the Act of 1959 or section 4 of the Roads Improvement Act, 1925.

1925 c. 68.

(10) For the purposes of this section the corner of a street shall be deemed to be the point at which the frontage or boundary line of that street, if necessary continued in a straight line, intersects the frontage or boundary line of any other street, if necessary similarly continued.

PART III
—cont.
Application of
building line
to walls, etc.

16.—(1) No person shall erect, or bring forward, beyond the building line on land abutting on a street in the borough any structure of a greater height than 6 feet 6 inches above the level of the ground at the nearest boundary of the street.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a fine not exceeding five pounds.

(3) The foregoing provisions of this section shall not apply to a temporary structure required to be erected for the purpose of the construction, demolition, alteration, repair or maintenance of any building or works:

Provided that, if any such temporary structure is not removed within seven days after the completion of the construction, demolition, alteration, repair or maintenance of the building or works the person who erected the structure shall be liable to a fine not exceeding five pounds.

(4) Where any person is convicted of an offence under any of the foregoing provisions of this section, the court by which he was convicted may order him, within such time as may be fixed by the order, to remove the structure, or, if he so elects, to set it back or alter it so that it no longer contravenes the provisions of subsection (1) of this section; and if he fails to comply with the order—

- (a) he shall be liable to a fine not exceeding twenty shillings for each day on which the failure continues; and
- (b) the Corporation, after giving him notice of their intention so to do, may remove the structure and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a fine for any day after that on which the Corporation have given him notice of their intention to remove the structure.

(5) Where, after the expiration of five years from the passing of this Act, there is on any site in the borough a structure which existed on that site at the passing of this Act and could not have been erected there after the passing thereof without contravening the provisions of subsection (1) of this section—

- (a) the Corporation may, by notice stating the effect of paragraphs (b) and (c) of this subsection, require the owner or occupier of the site to remove, set back or alter the structure within such time, not being less than seven days, as may be specified in the notice so that it will comply with those provisions;
- (b) if the owner or occupier complies with the said notice, the Corporation shall on demand repay to him the reasonable expenses incurred by him in so doing;

(c) if the owner or occupier fails to comply with the said notice, the Corporation at their own expense may remove the structure, but shall if he so requires re-erect it so as not to contravene the said provisions.

(6) In this section—

“ building line ” in relation to any land means—

(a) any building line prescribed by the Corporation in respect of the land under the provisions of any enactment; or

(b) if there be no such line, any line beyond which a house or building may not be erected on the land without infringing a condition enforceable by the Corporation under subsection (2) of section 147 of the Housing Act, 1957; or

1957 c. 56.

(c) if there be neither of such lines, the line beyond which a house or building may not except with the consent of the Corporation be erected or brought forward on the land without contravening the provisions of section 75 of the Act of 1959;

“ structure ” does not include an advertisement to which regulations made under section 34 of the Act of 1962 apply.

(7) The provisions of this section shall not apply to any wall erected on land belonging to any railway or inland navigation undertakers so long as that land is used by those undertakers primarily for the purposes of their railway or inland navigation undertaking.

17.—(1) In this section “ retaining wall ” means a wall which—

(a) serves, or is intended to serve, as a support for earth or other material on one side only; and

(b) does not form part of a permanent building;

Retaining walls.

and this section applies to any length of a retaining wall, being a length—

(i) any cross-section whereof is wholly or partly within 12 feet of a street in the borough; and

(ii) which is at any point of a greater height than 6 feet above the level of the ground at the boundary of the street nearest that point.

(2) After the passing of this Act no length of a retaining wall to which this section applies shall be erected otherwise than in accordance with plans, sections and specifications approved by the Corporation; and if any person erects any such length of a wall in contravention of this subsection he shall be liable to a fine not exceeding five pounds.

PART III
—cont.

(3) Any person aggrieved by the refusal of the Corporation to approve any plans, sections and specifications submitted to them in pursuance of the last foregoing subsection may appeal to a magistrates' court.

(4) If any length of a retaining wall to which this section applies—

- (a) is in such disrepair as to be liable to endanger persons using the street; or
- (b) having been erected before the passing of this Act or erected in contravention of subsection (2) of this section, is so constructed as to be liable as aforesaid;

the Corporation may by notice to the owner or occupier require him to execute such work as may be necessary to prevent its being liable as aforesaid; and the provisions of section 290 of the Act of 1936 shall apply in relation to such a notice as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) The provisions of this section shall not apply to a retaining wall erected—

- (a) on land belonging to any railway or inland navigation undertakers so long as that land is used by those undertakers primarily for the purpose of their railway or inland navigation undertaking; or
- (b) by the Minister on a trunk road; or
- (c) by the county council as highway authority on a county road other than a claimed county road.

Awnings over
footways.

18.—(1) (a) If a person erects, or permits to be erected, over the footway of a street in the borough, being a highway maintainable at the public expense, an awning which—

- (i) projects over any part of the footway which is less than 2 feet from the carriageway; or
- (ii) obscures a traffic sign from the view of persons driving or riding vehicles on the carriageway;

he shall be liable to a fine not exceeding five pounds.

(b) An awning that can be folded up or rolled up without being dismantled shall be treated for the purposes of this subsection as being in its extended position.

(2) If an awning over such a footway is dangerous or inconvenient to the public, the Corporation may by notice require the owner or occupier of the premises to which the awning is appurtenant to carry out such work as may be necessary to remove the danger or inconvenience.

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under the last foregoing subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

PART III
—cont.

(4) Nothing in this section shall prejudice or affect the provisions of section 104 of the London Passenger Transport Act, 1934, or section 65 of the London Passenger Transport Act, 1938.

1934 c. xcvi.
1938 c. xcii.

(5) In this section—

“awning” includes a blind, shade or other covering;

“traffic sign” has the meaning assigned to it by section 51 of the Act of 1960.

Miscellaneous

19.—(1) For the purpose of—

(a) making any new street; or

(b) providing a parking place for vehicles under section 81 of the Act of 1960;

Temporary
stoppage
of streets.

the Corporation may break up and for any reasonable time stop up, divert and interfere with any street in the borough and divert the traffic therefrom and prevent persons using it:

Provided that the Corporation shall not exercise the powers of this section—

(i) as respects any trunk road, without the consent of the Minister; or

(ii) as respects a county road other than a claimed county road, without the consent of the county council; or

(iii) so as to deprive foot-passengers bona fide going to or from any building or land in the street of reasonable access to the building or land; or

(iv) so as to obstruct, or interfere with, the access to, or exit from, any station, wharf or depot of any railway, inland navigation or passenger road transport undertakers; or

(v) so as to prejudice or affect the right of the Postmaster General—

(a) to maintain, inspect, repair, renew or remove any telegraphic line (as defined in the Telegraph Act, 1878) belonging to or used by him which may for the time being be under, in, upon, over, along or across that street; or

1878 c. 76.

(b) for the purposes of such maintenance, inspection, repair, renewal or removal to enter upon or break open that street.

PART III
—cont.

(2) Any consent required by the foregoing subsection shall not be unreasonably withheld but may be given subject to a condition that the Corporation, at their own expense, shall remove anything placed in a street under the powers conferred by this section if reasonably required to do so by the person giving the consent.

(3) The Corporation, when considering the question of exercising their powers under this section, shall have regard to the existence of alternative routes suitable for the traffic which will be affected.

(4) The provisions of Schedule 6 to the Act of 1960, so far as applicable, shall apply in respect of the exercise by the Corporation of the powers of this section as they apply in respect of the making by a highway authority of an order under section 36 of that Act.

Decorations
in streets.

20.—(1) The Corporation may, on the occasion of any public festivity, cause flag-poles and pylons to be erected in any street in the borough for the purpose of displaying decorations, and may for that purpose provide sockets or slots in, or under the surface of, any such street.

(2) If any person wilfully removes or damages a flag-pole, pylon, socket or slot erected or provided under this section, he shall be liable to a fine not exceeding five pounds.

(3) (a) The Corporation shall not exercise the powers of this section in a trunk road without the consent of the Minister or in a county road, other than a claimed county road, without the consent of the county council.

(b) Any consent required by this subsection shall not be unreasonably withheld but may be given subject to a condition that the Corporation, at their own expense, shall remove anything placed in a street under the powers conferred by this section if reasonably required to do so by the person giving the consent.

Prevention or
restriction of
vehicular
access to and
from certain
roads.

21.—(1) Where an order is made by the Corporation under section 26 of the Act of 1960 and, where necessary, confirmed by the Minister having the effect of preventing or restricting access by vehicular traffic to or from a road which is a highway maintainable at the public expense from or to any other street, the Corporation may for the purpose of facilitating the movement of vehicular traffic along or the safety of the public on, that road (or on any proposed widening, improvement, realignment or reconstruction thereof) or that street, construct and maintain works in, and at the junction of, that street for such prevention or restriction.

(2) The powers conferred by subsection (1) of this section shall include power to light any such works as aforesaid, to pave, grass or otherwise cover them, or any part of them, to erect pillars, walls, rails or fences on, around or across them or any part of them, and to plant on them trees, shrubs and other vegetation either for ornament or in the interests of safety.

(3) The Corporation may alter or (with the consent of the Minister) remove any works constructed by them under this section.

(4) Before constructing any works under this section in any street adjoining, or near to, any station or depot of the British Railways Board, the Corporation shall consult with that board, and any works carried out shall not affect the sighting of railway signals or the stability of railway works.

(5) Before constructing any works under this section in any street adjoining or near to any station, garage or depot of the London Transport Board or of any other passenger road transport operator the Corporation shall consult with that board, or, as the case may be, that operator.

(6) In relation to any works constructed by the Corporation under this section, being works to which, apart from this subsection, the provisions contained in Part II of the Public Utilities Street Works Act, 1950 (which regulate the relations between an authority carrying out road alterations and undertakers whose apparatus is affected thereby) would not apply, the said provisions shall apply as if the works were executed for road purposes by an authority mentioned in subsection (1) of section 21 of that Act and were included in the works mentioned in paragraph (a) of the said subsection (1) of section 21. 1950 c. 39.

(7) If any person, without lawful authority, removes or interferes with any works constructed under subsection (1) of this section, he shall be liable on summary conviction to a fine not exceeding five pounds.

22. Section 26 of the Act of 1960 shall have effect in its application to the borough and to the council as if— Amendment of section 26 of Act of 1960.

(1) in subsection (1) after paragraph (e) there were added the following paragraph:—

“ or (f) for improving or facilitating the movement, convenience or comfort of persons or other traffic using the road or any part of the road or in the interest of the amenity of the area surrounding the road or any part of the road.”;

(2) in subsection (3) after the words “ exceptions so specified ” there were inserted the words “ or by foot passengers ” and after paragraph (e) there were added the following paragraph:—

“ (f) prohibiting the use of roads by vehicular traffic or by foot passengers ”;

PART III
—cont.

and after the words “express carriage” there were inserted the words “and no order under this section which could not have been made if this section had not been amended by section 22 (Amendment of section 26 of Act of 1960) of the Guildford Corporation Act 1967 shall be made prohibiting the use by vehicular traffic of a road or any part of the width thereof upon which any service of stage carriages or express carriages is operated unless there is an alternative road or part of a width of a road suitable for use by such carriages and convenient for the persons using or desiring to use them or if the effect of the order would be to prevent such access to or egress from any station or depot used by stage carriages or express carriages as may be reasonably required”;

- (3) the following new subsection were inserted after subsection (3):—

“(3A) In any case in which the authority intend to make an order under this section which could not have been made if this section had not been amended by section 22 (Amendment of section 26 of Act of 1960) of the Guildford Corporation Act 1967 and the effect of such order would be to prohibit the use of a road by vehicular traffic the authority shall consult with such persons as appear to them to be affected by the order and such representative organisations as they think fit and if, after such consultation as aforesaid, the authority determine that access to or within reasonable distance of any premises where trade or business is carried on situated on or adjacent to the road is essential for the purpose of the loading and unloading of vehicles, the order shall make such provision for such access (either with or without the permission of the authority or a police constable in each case) as the authority may determine”;

- (4) in subsection (4) after the words “as may be reasonably required” where those words first occur there were inserted the words “for foot passengers or” and after the words “any other premises accessible” there were inserted the words “for foot passengers or”;
- (5) in subsection (5) before the words “shall not have effect” there were inserted the words “(except in so far as it relates to foot passengers)” and after the words “buildings on or near it” there were inserted the words “or (if the order does not prevent access for more than ten hours in all in any consecutive period of twenty-four hours) for improving or facilitating the movement,

convenience or comfort of persons or other traffic using the road or any part of the road or in the interest of the amenity of the area surrounding the road or any part of the road ”;

PART III
—cont.

- (6) in subsection (7) for the words from the beginning to “ liable ” there were substituted the words “ A person who contravenes, or who uses a vehicle, or causes or permits a vehicle to be used, in contravention of, a traffic regulation order shall be liable ”.

23.—(1) Where it appears to the Corporation expedient for the proper planning or the improvement of the environment or the amenities of any part of the borough that the use of any predominantly residential road or any predominantly residential part of a road should be restricted, the Corporation may by order made and confirmed in accordance with the following subsections prohibit or restrict the use of the road or part of the road by vehicular traffic of any class or description specified in the order:

Restriction on
use of certain
roads by
vehicles.

Provided that—

- (a) no order shall be made prohibiting or restricting the use by vehicular traffic of a road or any part of the width thereof upon which any service of stage carriages or express carriages is operated without the consent of the holders of the road service licence under which that service is authorised or, in the case of any such service operated by the London Transport Board, without the consent of that board;
- (b) the Minister shall not confirm an order under this section in any case which in his opinion could be more appropriately dealt with by an order under section 26 of the Act of 1960, as amended by section 22 (Amendment of section 26 of Act of 1960) of this Act.

(2) An order under this section with respect to a road or part of a road shall make provision for permitting reasonable access to, or, alternatively, access within a reasonable distance of, premises situated on or adjacent to the road or any other premises accessible from, and only from, the road.

(3) (a) An order made by the Corporation under this section shall not have effect unless confirmed by the Minister.

(b) Subsections (2) and (3) of section 27 and section 29 of the Act of 1960 and any regulations made by the Minister under the said section 29 shall apply to orders under this section as they apply in relation to orders under section 26 or section 27 of that Act, as the case may be.

PART III
—cont.

(4) A person who uses a vehicle, or causes or permits a vehicle to be used, in contravention of an order made and confirmed under this section shall be liable to a fine not exceeding twenty pounds.

(5) In this section “express carriage” and “stage carriage” have the same respective meanings as in the Act of 1960.

General

Interpretation
of Part III.

24.—(1) In this Part of this Act—

“new street byelaws” has the meaning assigned to it by subsection (4) of section 157 of the Act of 1959;

“structure” means a wall, fence, hoarding or similar erection; but for the purpose of this definition “wall” does not include a wall forming part of a permanent building.

(2) For the purposes of this Part of this Act the erection of a building shall be deemed to have begun at the time when the clearing of the site or the excavation for the foundations thereof, whichever is the earlier, began.

PART IV

PARKS, CEMETERIES AND OTHER MUNICIPAL PROPERTY

Parking places
in parks, etc.

25.—(1) For the purpose of providing a parking place under section 81 of the Act of 1960 the Corporation may, with the consent of the Minister utilise any part of a park, pleasure ground or open space provided by them or under their management and control:

Provided that the part of any park, pleasure ground or open space utilised under this section shall not exceed one-eighth of the total area thereof, or one acre, whichever is the less.

1906 c. 25.

(2) In this section “open space” has the same meaning as in the Open Spaces Act, 1906.

Golf courses.

26.—(1) The Corporation may within or outside the borough provide a golf course, and for that purpose may provide such buildings, and execute such works, as may be necessary or expedient.

(2) References in the following provisions of this section to a golf course provided under this section shall include references to any buildings provided, or works executed, under this section, and to anything with which any such golf course or building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may either—

(a) themselves manage a golf course provided under this section, making such reasonable charges for the use thereof, or admission thereto, as they think fit; or

(b) let it, or any part thereof, for such consideration, and on such terms and conditions, as they think fit.

(4) The Corporation may—

(a) at a golf course provided under this section, provide and sell refreshments of all kinds, subject to the provisions of all enactments relating thereto;

(b) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid;

(c) grant, upon such terms and conditions, and for such period, as they think fit, the right so to provide and sell refreshments;

(d) by themselves, or any person appointed by them in that behalf, apply for, and hold, licences for the sale of intoxicating liquor or tobacco at any such golf course.

(5) The Corporation may make byelaws for regulating the use of golf courses provided under this section, whether within or outside the borough, and the conduct of persons using them or resorting thereto.

27. No power conferred upon the Corporation by either of the foregoing sections of this Part of this Act shall be exercised in trusts, etc. such a manner—

(a) as to be at variance with a trust subject to which land or a building is held, managed or controlled by the Corporation, without an order of the High Court, or of the Charity Commissioners, or of the Secretary of State, or, where the trust instrument reserves to the donor, or any other person, the power to vary the trust, without the consent of the donor or that other person; or

(b) as to contravene a covenant or condition subject to which a gift or lease of land or a building has been accepted by, or granted to, the Corporation, without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

28.—(1) The Corporation may agree with any person, in consideration of the payment of a sum by him, to maintain, for a period fixed by the agreement, a grave or tombstone in a burial ground or crematorium provided by the Corporation. in Agreements to maintain graves and tombstones.

(2) In this section—

“grave” includes a grave space, niche or urn;

“tombstone” includes a monument or other memorial of a deceased person.

29.—(1) The powers of the Corporation in relation to a burial ground maintainable by them shall include power— Extension of power to maintain burial grounds.

(a) to put, and keep, in order any memorial therein;

(b) to level any grave therein;

PART IV
—cont.

- (c) to remove the whole or any part of a memorial therein;
 - (d) to alter the position of any such memorial.
- (2) Before exercising a power conferred by paragraph (b), (c) or (d) of the foregoing subsection the Corporation shall—
- (a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in the borough, with an interval between the dates of publication of not less than six clear days;
 - (b) display a notice thereof in a conspicuous position in the burial ground; and
 - (c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of the owner, or of a relative of such a person, can be ascertained.
- (3) Each of the notices shall—
- (a) contain brief particulars of the Corporation's proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
 - (b) specify the date on which it is intended that the Corporation will begin to carry out the proposals, which shall be not earlier than the fourteenth day after the date of the later of the two publications, or than the twenty-first day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service whichever is the latest; and
 - (c) state the effect of the next following subsection.
- (4) If notice of objection to a proposal, and of the ground thereof, is given to the Corporation before the date specified under paragraph (b) of the last foregoing subsection, that proposal shall not be carried out without the consent of the Minister unless the notice is withdrawn.
- (5) The Corporation may put to such use as they think appropriate, or destroy, any memorial removed under this section, unless it is claimed and removed by the person claiming it or some person acting on his behalf within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.
- (6) Where a memorial is removed by the Corporation under this section, the Corporation may erect at their own expense, in substitution, a memorial of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause a record to be made of each memorial taken from the burial ground under this section containing—

PART IV
—*cont.*

(a) a copy of any inscription on it; and

(b) if it is intended to preserve the memorial, a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar General.

(8) (a) Nothing in the foregoing provisions of this section shall relieve the Corporation from any obligation to which they are subject apart from those provisions to obtain for any work a faculty or licence of a consistory court.

(b) Subsections (2) to (4) of this section shall not have effect in relation to any work for which the Corporation obtain such a faculty or licence; and subsection (5) thereof shall not have effect in relation to any memorial for whose removal such a faculty or licence was obtained.

(9) In this section—

“grave” includes a grave space;

“memorial” means any object erected, placed or planted for the commemoration of the dead, and includes any wall, kerb or railing, protecting, enclosing or marking a grave or memorial.

30.—(1) In this section—

“the Commission” means the Commonwealth War Graves Commission;

For
protection of
Common-
wealth War
Graves
Commission.

“Commonwealth war burial” means a burial of any officer or man of the naval, military or air forces of His Majesty fallen in the war of 1914 to 1921 or in the war of 1939 to 1947;

“memorial” has the same meaning as in section 29 (Extension of power to maintain burial grounds) of this Act.

(2) In relation to any burial ground to which the provisions of section 29 (Extension of power to maintain burial grounds) of this Act apply and in which there are situated any Commonwealth war graves relating to the war of 1914 to 1921 or to the war of 1939 to 1947 the Corporation shall—

(a) not later than the date upon which such notice is first published in a newspaper circulating in the borough serve upon the Commission a copy of any notice which the Corporation are required to publish pursuant to the said section 29;

PART IV
—cont.

- (b) give written notification to the Commission of their intention to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of the said section 29;

and in any such case shall have due regard to any written representations made by the Commission within a period of one month from the service of the notice or the giving of the notification, as the case may be.

(3) The Corporation shall not in pursuance of the powers of the said section 29 remove any memorial placed or erected over any Commonwealth war grave unless they have first given to the Commission satisfactory assurances in writing in regard to all or such of the following matters as the Commission consider appropriate, namely:—

- (a) that no other memorial shall be placed or erected over such grave;
- (b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty of a consistory court after prior notification to the Commission of the application for the licence or faculty;
- (c) that in the case of any headstone placed or erected by the Commission over any such grave such memorial shall be removed only in accordance with such arrangements and in such manner including disposal of the memorial as shall be agreed in writing between the Corporation and the Commission.

(4) If a Commonwealth war burial would be affected by a consent given by the Minister under subsection (4) of the said section 29 the Corporation shall, not later than the date on which the matter is referred to the Minister, inform the Commission in writing of such reference and the Minister shall consider any representations submitted to him by the Commission within a period of twenty-eight days from the date of reference to the Minister.

As to disposal
of public
walks and
pleasure
grounds.
1875 c. 55.

31. The powers of sections 163, 164 and 165 of the Act of 1933 may be exercised by the Corporation in respect of land for the time being held by them for the purposes of section 164 of the Public Health Act, 1875, notwithstanding that such land has been made available for free and unrestricted access by members of the public:

Provided that the Corporation shall not under the powers of this section appropriate, sell, lease or otherwise dispose of land exceeding in total an area of 300 square yards.

PART V

PUBLIC ORDER AND PUBLIC SAFETY

32.—(1) No procession shall pass through the streets of the borough unless written notice stating the route by which, and the date and time on and at which, it will pass has been delivered at the office of the town clerk, and at the principal police station in the borough, by midday on the day next but one before the date stated, treating as not an intervening day a Sunday, Christmas Day, Good Friday, bank holiday or day appointed for public thanksgiving or mourning. Notice of street processions.

(2) If a procession passes through the streets of the borough in contravention of the foregoing subsection, or by a route, or at a time, other than that stated in the notice delivered with respect thereto under that subsection, any person organising or conducting the procession shall be liable to a fine not exceeding ten pounds.

(3) In this section “procession” means any public or ceremonial procession or any circus procession or procession of wild animals: Provided that nothing in this section shall apply to a public or ceremonial procession habitually held.

33.—(1) As from the appointed day no person shall at any place in the borough to which this section applies— Touting, hawking, etc.

(a) importune any person by touting for a hotel, lodging house or refreshment house, for a shop, for a theatre, garden or place of amusement or for a boat, hackney carriage or public service vehicle; or

(b) without the consent of the Corporation, which may be given on such terms and conditions as they think fit—

(i) hawk, sell or offer for sale any article or commodity; or

(ii) take a photograph by way of trade or business of any person except as mentioned in subsection (4) of this section.

(2) The Corporation shall not withhold their consent under paragraph (b) of the foregoing subsection to the sale or offering for sale by any person of newspapers and periodicals except on the ground that their consent to such sale or offering for sale has already been given to a reasonably sufficient number of other persons.

(3) The prohibition imposed by sub-paragraph (i) of paragraph (b) of subsection (1) of this section shall not apply to a sale or offering for sale to persons residing in, or employed at, premises in or adjoining a place to which this section applies.

PART V
—cont.

(4) The prohibition imposed by sub-paragraph (ii) of paragraph (b) of subsection (1) of this section shall not apply to the taking of a photograph for the purpose of making it available for publication in a newspaper or periodical if the photographer is employed as such by or on behalf of the owner or publisher of a newspaper or periodical or carries on a business which consists in, or includes, selling or supplying photographs for such publication.

(5) This section applies to any place—

1906 c. 25.

- (a) in or on an esplanade, parade, promenade or public walk;
- (b) in a park, pleasure ground or open space within the meaning of the Open Spaces Act, 1906, which is provided by the Corporation or under their management and control;
- (c) in any street or part of a street to which this section applies by virtue of byelaws made by the Corporation under this section.

(6) Any person aggrieved by the refusal of the Corporation to give their consent under paragraph (b) of subsection (1) of this section, or by any terms or conditions attached to a consent given by the Corporation thereunder, may appeal to a magistrates' court.

(7) If any person contravenes any of the foregoing provisions of this section, or any term or condition upon which any consent is given thereunder he shall be liable to a fine not exceeding ten pounds.

Coffee bars,
clubs, etc.,
open after
11 p.m. or
before 5 a.m.

34.—(1) In this section—

“ coffee bar ” means—

(a) any premises which are kept open for public refreshment at any time between the hours of eleven o'clock in the evening and five o'clock in the morning; or

(b) any premises which are used by a club, organisation or body and which, if they were kept open to the public, would fall within paragraph (a) of this definition;

but does not include any premises —

(i) in respect of which there is in force for the time being a justices' on-licence within the meaning of subsection (2) of section 1 of the Licensing Act 1964; or

1964 c. 26.

(ii) which are kept open wholly or mainly as an ancillary amenity to a bona fide hotel, guest house or lodging house; or

(iii) which are used by a club registered or licensed under the Licensing Act 1964, or a club provided or 1964 c. 26. maintained by the Corporation; or

(iv) which are used by a club, organisation or body—

(A) registered as a charity under section 4 of the Charities Act, 1960 or not required to be 1960 c. 58. registered under that section by virtue of the provisions of subsection (4) thereof; or

(B) exclusively and bona fide for the purpose of a gymnasium or swimming bath, or playing badminton, fives, racquets, squash, bingo, tombola, billiards, chess, dominoes, bridge, whist or any game similar to any of those games; or

(v) in respect of which a licence is for the time being in force for the public performance of stage plays or a cinematograph exhibition; or

(vi) which are used as a canteen forming part of a factory or office which is subject to the Factories Act, 1961 or the Offices, Shops and Railway Premises 1961 c. 34. Act 1963; 1963 c. 41.

“specified drug” means any substance which the council, with the approval of the Secretary of State, by resolution determine should, from a date to be fixed by the resolution, be included among the drugs to which subsection (13) of this section applies;

“young person” means a person of not more than eighteen years of age.

(2) For the purposes of a resolution relating to a specified drug the provisions of subsections (3) and (4) of section 56 (The appointed day) of this Act shall (with any necessary modifications) apply to any such resolution and the date fixed thereby.

(3) If in the opinion of the Corporation it becomes unnecessary that premises of any particular class or description should remain subject to the provisions of this section the council may by resolution determine that as from a date to be fixed by the resolution such class or description of premises shall be exempted from the provisions of this section; and the provisions of subsections (3) and (4) of the said section 56 shall (with any necessary modifications) apply to any such resolution and the date fixed thereby:

PART V
—cont.

Provided that the Corporation may, after the date so fixed by any such resolution, apply to a magistrates' court for an order that, having regard to any relevant circumstances, any specified premises exempted from the provisions of this section by such a resolution should become subject to the provisions of this section, and if the court so orders those premises shall become subject to the provisions of this section from such date as may be fixed by the court, being a date not earlier than one month from the date of service upon the occupier of those premises of a copy of the order of the court.

(4) On and after the appointed day—

- (a) no premises in the borough shall be used as a coffee bar, unless they are registered with the Corporation in accordance with the provisions of this section;
- (b) if any owner, occupier or other person concerned in the management of premises in the borough uses them as a coffee bar or permits the premises to be used as a coffee bar he shall, unless the premises have been so registered with the Corporation and the registration remains in force, be liable to a fine not exceeding one hundred pounds.

(5) The Corporation may refuse to register or renew the registration of any premises for use as a coffee bar if they are satisfied that—

- (a) the premises are not suitable for use as a coffee bar having regard to the likelihood of nuisance being caused by reason of the situation of the premises and the character of adjacent properties;
- (b) the persons intended to be concerned with the conduct of the premises as a coffee bar are such that young persons resorting thereto are likely to be depraved or corrupted;
- (c) the premises are not safe for use as a coffee bar;
- (d) the premises are not provided with satisfactory means of lighting, sanitation and ventilation;
- (e) adequate precautions against fire on the premises have not been taken;
- (f) satisfactory means of escape in case of fire and suitable fire-fighting appliances are not provided on the premises; or
- (g) the applicant has, within the period of five years immediately preceding the date of the application to the Corporation, been convicted of an offence under subsections (6) or (13) of this section.

(6) (a) The Corporation may on registering or renewing the registration of any premises for use as a coffee bar impose conditions as to—

- (i) the maintenance of public order and safety;
- (ii) the number of persons who may be allowed to be on the premises at any time;
- (iii) the taking of proper precautions against fire, and the maintenance in proper order of means of escape in case of fire, fire-fighting appliances and means of lighting and ventilating the premises;
- (iv) the maintenance in safe condition of means of heating the premises; and
- (v) the hours of opening and closing the premises for use as a coffee bar so as to ensure that nuisance is not likely to be caused to residents in the neighbourhood:

Provided that the Corporation shall not impose any condition under sub-paragraph (v) of this paragraph in the case of premises which are kept open wholly or mainly as an ancillary amenity to a bona fide tenpin bowling establishment.

(b) Any person concerned in the management of a coffee bar who contravenes any condition imposed under this subsection, or who knew or had reasonable cause to suspect that such a condition was being contravened by some other person, shall be liable to a fine not exceeding fifty pounds:

Provided that if the person against whom proceedings are brought under this paragraph proves that he has used all due diligence to secure that the condition concerned was complied with, he shall be acquitted of the offence under this paragraph.

(7) The Corporation may at any time cancel the registration of any premises on any ground upon which, pursuant to subsection (5) of this section, they may refuse to renew the registration of those premises, or if they are satisfied that any condition imposed under subsection (6) of this section has not been complied with.

(8) An application for registration or renewal of registration under this section shall be made in writing to the Corporation by the owner or occupier of the premises to which the application relates and every such application shall state—

- (a) the address or situation of the premises to which the application relates;
- (b) the name and address of the applicant and his trade or calling during the six months preceding the application;
- (c) such other information regarding the premises to be registered and the manner in which the premises are proposed to be used as the Corporation may reasonably require.

PART V
—cont.

(9) Any person making application for registration or renewal of registration under this section shall when making application pay to the Corporation in respect thereof a fee of one pound.

(10) Before refusing to register or renew the registration of any premises or cancelling the registration of any premises the Corporation shall give to the person applying for registration or renewal of registration or in whose name the premises are registered an opportunity of appearing before and of being heard by a committee of the council and, if so required by him, the Corporation shall within seven days of their decision give to him a statement of the grounds upon which it was based.

(11) Any person aggrieved by the refusal of the Corporation to register or renew the registration of any premises under this section, or by the cancellation of any such registration or by any condition imposed under this section, may within twenty-one days from the date of the service of the notice of such refusal, or cancellation, or the imposition of the condition, appeal to a magistrates' court; and on any such appeal the court may by order confirm or set aside such refusal or cancellation or confirm, vary or set aside any such condition, or impose any condition which the Corporation would have been entitled to impose by virtue of this section, and the Corporation shall give effect to such order accordingly.

(12) Registration under this section shall, unless cancelled, remain in force for such period not exceeding thirteen months as may be fixed by the Corporation.

1964 c. 64.
1965 c. 15.

(13) If a coffee bar is conducted in a disorderly manner, or if any drug to which the Drugs (Prevention of Misuse) Act 1964, or the Dangerous Drugs Act 1965, applies, or any specified drug is sold, supplied or otherwise distributed on the premises by a person to any other person resorting thereto, any person concerned in the management of the coffee bar who knew or had reasonable cause to suspect that the premises were so conducted as aforesaid or that such sale, supply or distribution was taking place on the premises shall be guilty of an offence under this section and liable on conviction to a fine not exceeding fifty pounds:

1956 c. 76.

Provided that nothing in this subsection shall apply to the administration of a drug or a specified drug for the purposes of medical treatment by or in accordance with the directions of a medical practitioner registered pursuant to the Medical Act, 1956, or any enactment amending or replacing the same.

(14) Any duly authorised officer of the Corporation on producing if so required some duly authenticated document showing his authority, and any police constable, shall have a right to

enter, at all reasonable times, any premises used as a coffee bar, or intended to be so used, for the purpose of ascertaining—

PART V
—cont.

- (a) whether there is, or has been in or in connection with the premises, any contravention of the provisions of this section or of any condition imposed under the powers of this section;
- (b) whether or not circumstances exist which would authorise the Corporation to take any action under this section.

(15) The provisions of subsections (2), (3) and (4) of section 287 of the Act of 1936 shall apply to entry into any premises for the purposes of subsection (14) of this section as they apply to entry into premises for the purposes of subsection (1) of that section.

(16) Where an offence under this section committed by a body corporate is proved to have been committed with the consent of or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

(17) Notwithstanding the reference in subsection (1) of this section to the hours of eleven o'clock in the evening and five o'clock in the morning where premises are for the time being registered with the Corporation under this section the person who keeps the premises shall be deemed to have been duly licensed in respect of those premises under the provisions of the Refreshment Houses Act, 1860, in respect of the period between the hours of ten o'clock in the evening and five o'clock in the morning and the provisions of that Act, and of any enactment amending or extending the same, shall apply accordingly.

35.—(1) The Corporation may make byelaws for applying, with such consequential modifications as may be provided for in the byelaws, any of the provisions of—

Provisions
as to motor
vehicles let
for hire.

- (a) sections 37 to 67 of the Town Police Clauses Act, 1847, as subsequently amended as they apply with respect to hackney carriages and their proprietors and drivers; and
- (b) any byelaws made by the Corporation and in force with respect to such carriages, proprietors and drivers;

1847 c. 89.

to private hire vehicles and their proprietors and drivers.

(2) In this section “private hire vehicle” means a motor vehicle (within the meaning of the Act of 1960) not being a vehicle licensed under the provisions of the Town Police Clauses Act, 1847, with respect to hackney carriages, which is kept for the

PART V
—cont.

purpose of being let out for hire with a driver for the carrying of passengers in such circumstances that it does not require to be licensed under the said provisions, but does not include—

- (a) a vehicle which is kept and used ordinarily for the purpose of being let out for hire by the day or for longer periods of hire;
- (b) a vehicle kept by any person in connection with any business carried on by him as a funeral director or undertaker and used wholly or mainly in connection with that business; or
- (c) a public service vehicle as defined in section 117 of the Act of 1960.

Hackney
carriages.
1847 c. 89.

36.—(1) Notwithstanding anything in the Town Police Clauses Act, 1847, the Corporation may suspend or revoke the licence—

- (a) of a proprietor of a hackney carriage on the ground of the unfitness of the hackney carriage or on the ground that since the granting of the licence the vehicle has been transferred to a person other than the person to whom the licence was granted and is not being used as a hackney carriage; or
- (b) of a driver of a hackney carriage on the ground that he has since the granting of the licence been convicted of an offence involving dishonesty or violence.

(2) Any hackney carriage proprietor or driver aggrieved by a decision of the Corporation under subsection (1) of this section may appeal to a court of quarter sessions.

(3) The cost not exceeding twenty shillings per inspection incurred by the Corporation in carrying out inspections of vehicles for the purpose of determining whether hackney carriage licences should be granted therefor shall if the council so resolve be recoverable from the proprietors thereof.

(4) The provisions of this section shall not apply to a public service vehicle as defined in section 117 of the Act of 1960.

PART VI

MERROW DOWNS

Dissolution
of conservators
and transfer
of their
property,
liabilities, etc.,
to
Corporation.

37.—(1) As from the appointed day the conservators shall cease to act and their body shall by virtue of this Act be dissolved and cease to exist.

(2) All property rights and powers which immediately before the appointed day belonged to or were vested in the conservators shall as from the appointed day by virtue of this Act and subject to the provisions thereof be transferred to and vest in the Corporation.

(3) All liabilities and obligations which immediately before the appointed day were binding upon the conservators shall as from the appointed day by virtue of this Act and subject to the provisions thereof be transferred to and become binding upon the Corporation.

PART VI
—cont.

(4) All receipts of the Corporation in respect of the common shall be carried to the general rate fund of the borough and all liabilities in respect thereof shall be discharged out of that fund.

38.—(1) As from the appointed day the management of the common shall be vested in the Corporation.

Powers in
respect of
Marrow
Downs
and repeal of
Order.

(2) The Corporation may—

- (a) execute any necessary works for the protection and improvement of the common;
- (b) plant trees and shrubs for the purpose of shelter or ornament;
- (c) construct plantations;
- (d) set out, construct and maintain footpaths and roads as they may consider expedient or necessary for the enjoyment of the common by the public;
- (e) for the purposes of games, sports or entertainment set apart a portion or portions of the common as they may consider expedient, and allow such portion or portions to be temporarily enclosed with an open fence.

(3) The Corporation may with the consent of the Minister use any parts of the common for the construction of public walks, parks, pleasure grounds or for other purposes.

(4) Save as hereinbefore provided the Corporation shall do nothing that may otherwise vary or alter the natural features or aspects of the common, and shall not construct on the common any shelter, pavilion, drinking fountain, convenience, car park, building or permanent fence without the consent of the Minister.

(5) On the appointed day the Order shall be and is hereby repealed.

39. On and after the appointed day—

Byelaws as to
Marrow
Downs.

- (1) the byelaws made by the conservators in pursuance of the Order shall notwithstanding the repeal effected by section 38 (Powers in respect of Marrow Downs and repeal of Order) of this Act continue in operation until repealed and shall have effect as if the Corporation were therein referred to in the place of the conservators and shall apply to the common as defined in this Part of this Act:

PART VI
—cont.

Provided that the said byelaws shall unless previously repealed by the Corporation cease to have effect on the expiration of two years from the appointed day;

- (2) a copy of the said byelaws shall be deposited at the office of the town clerk and (until they cease to have effect) shall at all reasonable hours be open to public inspection without payment and a copy thereof shall on application be furnished to any person on payment of such sum (not exceeding one shilling for every copy) as the Corporation may determine;
- (3) the production of a printed copy of a byelaw purporting to be made by the conservators upon which is endorsed a certificate purporting to be signed by the town clerk stating—
 - (a) that the byelaw was made by the conservators;
 - (b) that the copy is a true copy of the byelaw;
 - (c) that on a specified date the byelaw was confirmed by the authority named in the certificate;
 - (d) the date (if any) fixed by the confirming authority for the coming into operation of the byelaw;
 shall be prima facie evidence of the facts stated in the certificate and without proof of the handwriting or official position of the town clerk;
- (4) the Corporation may make byelaws for the regulation and preservation of and the preservation of order on the common and by such byelaws provide for the removal from the common of any person infringing any such byelaw by any officer of the Corporation or a police constable.

Continuance
of proceedings.

40. Nothing in this Part of this Act shall release, discharge or suspend any action, arbitration or other proceeding which shall be pending by or against the conservators or their clerk as representing the conservators on the appointed day and any such action, arbitration or other proceeding may be maintained, prosecuted or continued by or in favour of or against the Corporation.

Saving of
agreements.

41. All sales, conveyances, grants, assurances, deeds, contracts, bonds and agreements affecting the conservators or their clerk as representing the conservators and in force on the appointed day shall on and from that day be as binding and of as full force in every respect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the conservators or their clerk the Corporation had been a party thereto or bound thereby or entitled to the benefit thereof.

42. All books and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the conservators shall be admitted in evidence in respect of the same or the like matter for or against the Corporation.

PART VI
—cont.

Books, etc.,
to remain
evidence.

43. Nothing in this Part of this Act shall affect—

Saving for
public and
common rights.
1925 c. 20.

(1) the rights of members of the public under section 193 of the Law of Property Act, 1925; or

(2) any common or commonable rights (if any);

exercisable in respect of the common at the passing of this Act.

44. In this Part of this Act unless the subject or context otherwise requires—

Interpretation
of Part VI.

“ the common ” means the lands called or known as “ Merrow Downs ” situate in the borough and referred to in the Order;

“ the conservators ” means the persons who immediately before the appointed day constitute the conservators for whose appointment provision is made in Part II of the Order;

“ the Order ” means the Provisional Order of Regulation set forth in the Schedule to the Commons Regulation (Merrow) Provisional Order Act, 1904.

1904 c. cxxvi.

PART VII

FINANCE AND MISCELLANEOUS

45.—(1) The Corporation may borrow—

Power to
borrow.

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

1946 c. 58.

PART VII

—*cont.*Establishment
expenses.

46. Without prejudice to section 292 of the Act of 1936, and to that section as applied by any other enactment, where under any enactment the Corporation are empowered to execute works at the request of, or in default of, the owner or occupier of any premises, and to recover from him the expenses incurred by them in so doing, they may include in, and recover as part of, the expenses such additional sum, not exceeding five per centum of the cost of the works, as they think fit in respect of their establishment charges.

False
statements to
obtain rent
rebates, etc.

47.—(1) If a person for the purposes of obtaining for himself or another person—

- (a) the tenancy or occupation of a house belonging to, or at the disposal of, the Corporation; or
- (b) a grant, loan, allowance or other payment by or on behalf of the Corporation; or
- (c) a reduction of a rent, rate, charge or other payment due or to become due to the Corporation;

knowingly or recklessly makes, or permits to be made, to the Corporation or to any committee of the council or member of the council or employee of the Corporation a statement which is false in a material particular about his, or that other person's, needs or means he shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both.

1911 c. 6.

(2) Where the making of a false statement for any of the purposes aforesaid is an offence under any enactment other than the Perjury Act, 1911, it shall not be an offence under this section.

(3) The court by which a person is convicted of an offence under this section may by the conviction adjudge him—

- (a) to repay to the Corporation a sum not exceeding the amount of the grant, allowance or other payment, not being a loan, obtained by means of the false statement;
- (b) to pay to the Corporation a sum not exceeding the difference between any reduced payment accepted by the Corporation in faith of the false statement and the payment which the Corporation would otherwise have accepted.

Notice of
variation of
rent, etc.

48. The rent for the time being recoverable by the Corporation under a tenancy of any premises forming part of any housing accommodation belonging to the Corporation may be increased

or reduced or the terms and conditions of that tenancy may be varied, amended or added to by the service by the Corporation on the tenant of a notice—

PART VII
—cont.

- (a) specifying the amount of the increase or reduction in rent or the variation or amendment of or addition to the terms and conditions; or
- (b) in the case of an increase or reduction in rent, showing in general terms how the increase or reduction in rent has been determined and indicating that the revised rent has been or will be included in the rent book provided by the Corporation;

whether or not such notice is accompanied by a notice to quit, but such increase, reduction, variation, amendment or addition shall not take effect until such date as is specified in the notice not being earlier than four weeks after the service thereof:

Provided that if before the date specified in the notice the tenant upon whom such notice has been served serves a counter-notice upon the Corporation requiring them to treat the notice as a notice to quit, the notice shall be deemed to be a notice to quit the premises on the said date or, in the case of an increase or reduction in rent notified by means of a general notice as aforesaid and an entry in the rent book, such later date (not being more than four weeks from the date on which the revised rent is so entered) as the tenant may indicate in the counter-notice.

49. Section 78 (Power to purchase Godalming Navigation) of the Guildford Corporation Act, 1938, shall have effect as if—
Godalming Navigation.
1938 c. lxxxvi.

- (1) in subsection (1) for the definition of “the Godalming Corporation” there were substituted the following definition:—

“the trust” means the National Trust for Places of Historic Interest or Natural Beauty;

- (2) the following were added to subsection (4):—

“(d) the Corporation may exercise in regard to any lands or waters acquired by them as part of the undertaking of the commissioners all or any of the powers of a local authority under section 94 of the Public Health Acts Amendment Act, 1907, and that section shall have effect as if the said lands and waters were within the borough and as if the following
1907 c. 53.

PART VII
—cont.

subsection were substituted for subsection (3) thereof, namely:—

‘ (3) No person shall—

(a) let for hire a pleasure boat or pleasure vessel not so licensed, or at any time during the suspension of the licence for the boat or vessel; or

(b) carry, or permit to be carried, passengers for hire in a pleasure boat or pleasure vessel unless the boat or vessel, and the boatman in charge thereof and the navigator, are so licensed, or at any time during the suspension of the licence for the boat or vessel or the boatman or navigator:

Provided that this subsection shall not be taken to require a person to be licensed as a boatman who takes on hire a pleasure boat or pleasure vessel for purposes other than for profit’.”;

(3) for subsection (7) there were substituted the following subsection:—

“(7) (a) If the Corporation shall acquire the undertaking of the commissioners in pursuance of the provisions of this section the Corporation and the trust may enter into and carry into effect an agreement for the transfer by the Corporation to the trust of the said undertaking and as from the date fixed in such agreement (in this section referred to as ‘the second date of transfer’) the said undertaking shall by virtue of this Act and without any deed of conveyance or other assurance become and be vested in the trust.

(b) On and after the second date of transfer—

(i) the Act of 1760 and the Order of 1894 shall respectively have effect as if the trust were referred to therein instead of the Corporation;

(ii) notwithstanding anything in the Act of 1760 or in this Act, the trust may sell any part of the undertaking not being lands or tenements which are held by the trust inalienably for the public benefit;

(iii) the powers of the Corporation under paragraphs (c) and (d) of subsection (4) of this section shall cease to be exercisable by the Corporation but those powers shall be exercisable by the trust; and

(iv) the Corporation shall be relieved of all obligations under the Act of 1760:

1760 c. 45.

1894 c. cxcviii.

Provided that notwithstanding anything in the foregoing sub-paragraph (iv) nothing in this Act shall relieve the Corporation of any obligation to which they may be or become subject under section XXX (Penalty on Millers refusing to draw up cloughs, etc., on satisfaction tendered) of the Act of 1760 as owner or occupier of any mill referred to in that section.”

PART VII
—cont.

50. For the protection of the Godalming Corporation the following provisions shall as from the second day of transfer and unless otherwise agreed between the Corporation, the trust and the Godalming Corporation apply and have effect:—

For protection
of Godalming
Corporation.

(1) In this section words and expressions to which meanings are assigned by the principal section shall have the same respective meanings and—

“the existing lease” means the lease dated 6th May 1949 made between the Commissioners and the Godalming Corporation;

“the Godalming Corporation” means the mayor, aldermen and burgesses of the borough of Godalming;

“the principal section” means section 78 (Power to purchase Godalming Navigation) of the Guildford Corporation Act 1938;

1938 c. lxxxvi.

“the transfer agreement” means the agreement entered into by the Corporation and the trust under subsection (7) of the principal section;

“the undertaking” means the undertaking transferred to the trust by the transfer agreement;

“the Wharf” means the property in the borough of Godalming known as the Wharf comprised in the existing lease:

(2) If at any time before the expiration of the existing lease or any renewal thereof under the following paragraph the Wharf or any part thereof is in the opinion of the trust surplus to the requirements of the undertaking the trust shall offer to sell the freehold thereof to the Godalming Corporation:

(3) If on the expiration of the existing lease the freehold of the Wharf has not been sold to the Godalming Corporation and the Wharf or any part thereof is not in the opinion of the trust required for the immediate purposes of the undertaking the trust shall grant to the Godalming Corporation a lease of the Wharf or such part (as the case may be)—

(a) for such period (not being less than forty years) as the trust may think fit; and

PART VII
—cont.

(b) containing the same or similar covenants and conditions as those contained in the existing lease subject however to such variations (if any) as may be reasonably required in the circumstances then obtaining:

(4) The amount to be paid by the Godalming Corporation—
(a) for the freehold of the Wharf or any part thereof if offered for sale under paragraph (2) of this section; or

(b) as rent for the Wharf or any part thereof, if leased under paragraph (3) of this section;

shall be such as represents the market value at the date of the sale or lease as between a willing vendor and a willing purchaser or a willing lessor and a willing lessee of the property sold or leased having regard to the terms on which it is sold or leased:

(5) The foregoing provisions of this section shall have effect notwithstanding any enactment or rule of law to the contrary:

(6) (a) If there is any dispute or difference as to the covenants or conditions to be contained in the lease to be granted under paragraph (3) of this section, the lease shall be referred to and settled by conveyancing counsel nominated by the President of The Law Society;

(b) Any dispute or difference arising under the provisions of paragraph (4) of this section shall be referred to and determined by the Lands Tribunal.

River Wey
pence.
1670 c. xxvi.

51.—(1) So much of the Act of 1670 as ratifies and confirms the articles and authorises the payment of the rates and prices therein set and established for the carriages and passages of boats, barges, wherries and other vessels, persons and goods on the navigation of the river Wey is hereby repealed.

(2) Notwithstanding the repeal referred to in subsection (1) of this section any person liable to make yearly payments under the articles may redeem his liability for such payments by the payment to the trustees of such sum of money as may be agreed between him and the trustees or failing agreement determined by arbitration.

(3) In this section—

“the Act of 1670” means the Act passed in the twenty-second and twenty-third years of the reign of His Majesty King Charles II intituled “An Act for preserving and settling the River Wey in the County of Surrey”;

“ the articles ” means the articles dated 7th March, 1670, which were confirmed by the Act of 1670; PART VII
—cont.

“ the trustees ” means the trustees of the charity called or known as the river Wey pence or payment for the poor and highways in the borough of Guildford in the county of Surrey. 1670 c. xxvi.

PART VIII

GENERAL

52. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State. Confirming authority for byelaws.

53. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the Corporation and the undertakers, apply and have effect:— For protection of statutory undertakers.

(1) In this section, unless the subject or context otherwise requires—

“ apparatus ” means—

(a) electric lines and works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by the Central Electricity Generating Board or the South Eastern Electricity Board; 1882 c. 56.

(b) mains, pipes or other apparatus belonging to or maintained by the South Eastern Gas Board, the West Surrey Water Board or the Woking and District Water Company;

and includes any works for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ operational land ” has the same meaning as in section 221 of the Act of 1962;

“ position ” includes depth;

“ the undertakers ” means—

the Central Electricity Generating Board;

the South Eastern Electricity Board;

the South Eastern Gas Board;

the West Surrey Water Board;

the Woking and District Water Company;

or any of them as the case may be:

PART VIII
—cont.

- (2) For the purposes of section 9 (Prohibition of building until street defined) of this Act, land shall not be deemed to be occupied in connection with a building by reason only of the existence of apparatus in such land:
- (3) Nothing in the said section 9 or in section 10 (Prohibition of building until street formed and sewered) of this Act shall prevent the undertakers from beginning to erect, or proceeding with the erection of, apparatus (including an electricity sub-station, feeder pillar, pressure governor or meter house) for the purposes of their undertaking on land abutting on any new street before, in the case of the said section 9, such street is defined or, in the case of the said section 10, such street is constructed or sewered in accordance with new street byelaws:
- (4) (a) Not less than twenty-eight days before the Corporation in the exercise of the powers of section 12 (Rounding or splaying off corners at street junctions) of this Act require the addition to the carriageway of a street of any portion of a footway or grass margin or garden in which any apparatus is situate the Corporation shall give to the undertakers notice of their intention so to do accompanied by a plan and section of the intended alteration and the undertakers may (and if reasonably so required by the Corporation shall) alter the position of the apparatus to such other position in—
 - (i) the carriageway or footway; or
 - (ii) the grass margin or garden (if any) as altered; as may be reasonable;
- (b) The undertakers shall within twenty-eight days from the receipt of a notice from the Corporation under sub-paragraph (a) of this paragraph give to the Corporation not less than fourteen days' notice of their intention to alter the position of any apparatus (otherwise than on the requirement of the Corporation) under the provisions of that sub-paragraph and shall at the same time deliver to the Corporation a plan and section of the proposed alteration. If such plan and section be not disapproved by the Corporation within fourteen days from the receipt thereof the proposed position of the apparatus shown thereon shall be deemed to be approved;
- (c) The Corporation shall repay to the undertakers the reasonable expenses incurred by the undertakers in or in connection with the alteration of the position of any apparatus under this paragraph and the reasonable costs of and incidental to—
 - (i) the cutting off of any apparatus from any other apparatus; and

(ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this paragraph:

PART VIII
—cont.

Provided that subsections (3) and (4) of section 23 of the Public Utilities Street Works Act, 1950 (which 1950 c. 39. imposes limitations on undertakers' rights to payment), shall so far as applicable apply to any payment to be made by the Corporation under this sub-paragraph as if the works hereinbefore in this paragraph mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under section 53 (For protection of statutory undertakers) of the Guildford Corporation Act 1967":

- (5) Nothing in section 14 (Trees, grass verges and gardens) of this Act shall affect the rights of the undertakers with respect to apparatus (including the placing of apparatus) in any grass verge or garden:

Provided that, in exercising such rights, the undertakers shall not cause or permit, except in the case of necessity, vehicles to enter upon any such verge which is maintained in an ornamental condition or mown, or any garden:

- (6) Nothing in the said section 14 or in section 20 (Decorations in streets) of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections, and the said powers shall be so exercised as not to render unreasonably inconvenient the access to any apparatus:
- (7) The provisions of section 16 (Application of building line to walls, etc.) of this Act shall not apply to any structure erected on operational land of the undertakers:
- (8) (a) Notwithstanding the temporary stopping up or diversion of any street under the powers of section 19 (Temporary stoppage of streets) of this Act the undertakers, their officers, engineers and workmen shall be at liberty at all times to enter upon such street or road or part thereof with any necessary vehicles and to execute and do all such works and things in any such street as may be necessary for placing, inspecting, repairing, maintaining, renewing or removing any apparatus;

PART VIII
—cont.

(b) The Corporation shall not exercise the powers of the said section 19 so as to obstruct, or interfere with, the access to or exit from any operational land of the undertakers:

(9) (a) Any difference which may arise between the Corporation and the undertakers under this section (other than a difference as to the meaning or construction of this section) shall be referred to and determined by arbitration;

(b) In settling any difference under this section the arbitrator may, if he thinks fit, require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

Local inquiries. 54.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

1946 c. 31. (3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946.

Arbitration.

55. In arbitrations under a provision of this Act mentioned in column (1) of the following table the reference shall be to a single arbitrator to be appointed by agreement between the parties, or, in default of agreement, to be appointed by the person mentioned in column (2) of that table on the application of any party after giving notice in writing to the other party or parties—

(1) Provisions of Act	(2) Person appointing arbitrator
Subsection (4) of section 13 (Adjustment of boundaries of estates in connection with streets)	The Minister of Housing and Local Government.
Subsection (2) of section 51 (River Wey pence)	President of the Institute of Chartered Accountants in England and Wales.
Section 53 (For protection of statutory undertakers)	President of the Institution of Civil Engineers.

56.—(1) In this Act, except Part VI (Merrow Downs), “ the appointed day ” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section. PART VIII
—cont.
The appointed day.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

- (a) of the passing of any such resolution and of the date fixed thereby; and
- (b) of the general effect of the provisions of this Act coming into operation as from that date;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the registration of premises used for any purpose, it shall be lawful for any person who—

- (a) immediately before that day was using any premises for that purpose; and
- (b) had before that day duly applied for the registration required by that provision;

to continue to use those premises for that purpose until he is informed of the decision with regard to his application, and, if the decision is adverse, during such further time as is provided under subsection (2) of section 58 (Appeals) of this Act.

57. The written consent of the Attorney General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation. Restriction on right to prosecute.

PART VIII
—cont.
Appeals.

58.—(1) Section 300 of the Act of 1936, shall apply to appeals to a magistrates' court under this Act; and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

then, until the time for appealing has expired or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

Protection of
members and
officers of
Corporation
from personal
liability.
1875 c. 55.

59. Section 265 of the Public Health Act, 1875, shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee of a local authority.

Application
of general
provisions of
Act of 1936.

60.—(1) The sections of the Act of 1936 mentioned in Part I of the Schedule to this Act shall have effect as if references therein to that Act included references to this Act except the following sections, namely:—

- Section 22 (Amendment of section 26 of Act of 1960); and
- Section 23 (Restriction on use of certain roads by vehicles).

(2) The sections of the Act of 1936 mentioned in Part II of the said Schedule shall have effect as if references therein to that Act included a reference to Part III (Streets) of this Act.

(3) The sections of the Act of 1936 mentioned in Part III of the said Schedule shall have effect as if references therein to that Act included a reference to section 4 (Agreements with developers) and to Part III (Streets) of this Act.

61. The provisions of the Act of 1962, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised or regulated by or under this Act.

PART VIII
—cont.

Saving for town and country planning.

62.—(1) The following enactments are hereby repealed:—

Repeal.

Guildford Corporation Act, 1926—

1926 c. lxxxv.

Section 73 (No building allowed until street defined);

Section 74 (Adjustment of boundaries);

Section 84 (Erection of retaining walls);

Section 141 (Provisions as to motor vehicles let for hire).

Guildford Corporation Act, 1938—

1938 c. lxxxvi.

Section 47 (Window blinds &c.);

Section 48 (Power to provide tubs for trees &c.);

Section 51 (Undertakings to bind successive owners);

Section 80 (As to maintenance of cemeteries &c.);

Section 81 (Extension of section 2 (3) of the Public Health (Interments) Act 1879).

1879 c. 31.

(2) As from the appointed day for the purposes of section 33 (Touting, hawking, etc.) of this Act, section 74 (Prohibition of touting hawking &c. in certain places and streets) of the Guildford Corporation Act, 1938, shall be and is hereby repealed.

63. The costs, charges and expenses preliminary to and of Costs of Act. and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

SCHEDULE

Section 60.

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED TO THIS ACT EXCEPT TO SECTIONS 22 AND 23.

Section	Marginal note
271	Interpretation of “ provide ”.
283	Notices to be in writing; forms of notices, &c.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.
341	Power to apply provisions of Act to Crown property.

PART II

SECTIONS APPLIED TO PART III OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
289	Power to require occupier to permit works to be executed by owner.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act, 1925.

1925 c. 22.

PART III

SECTIONS APPLIED TO SECTION 4 AND PART III OF THIS ACT

Section	Marginal note
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
293	Recovery of expenses &c.

Guildford Corporation Act 1967

CHAPTER xxviii

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Division of Acts into Parts.
3. Interpretation.

PART II

LANDS

4. Agreements with developers.
5. Undertakings and agreements binding successive owners.
6. As to Foxenden Quarry.
7. As to Stringers Common.
8. Correction of errors in deposited plans and book of reference.

PART III

STREETS

New streets

9. Prohibition of building until street defined.
10. Prohibition of building until street formed and sewered.
11. Access to new street.

Section

12. Rounding or splaying off corners at street junctions.
13. Adjustment of boundaries of estates in connection with streets.

Improvement of streets

14. Trees, grass verges and gardens.

Protection and repair of streets

15. Erection of structures at street corners.
16. Application of building line to walls, etc.
17. Retaining walls.
18. Awnings over footways.

Miscellaneous

19. Temporary stoppage of streets.
20. Decorations in streets.
21. Prevention or restriction of vehicular access to and from certain roads.
22. Amendment of section 26 of Act of 1960.
23. Restriction on use of certain roads by vehicles.

General

24. Interpretation of Part III.

PART IV

PARKS, CEMETERIES AND OTHER MUNICIPAL PROPERTY

25. Parking places in parks, etc.
26. Golf courses.
27. Saving for trusts, etc.
28. Agreements to maintain graves and tombstones.
29. Extension of power to maintain burial grounds.
30. For protection of Commonwealth War Graves Commission.
31. As to disposal of public walks and pleasure grounds.

PART V

PUBLIC ORDER AND PUBLIC SAFETY

32. Notice of street processions.
33. Touting, hawking, etc.
34. Coffee bars, clubs, etc., open after 11 p.m. or before 5 a.m.
35. Provisions as to motor vehicles let for hire.
36. Hackney carriages.

PART VI
MERROW DOWNS

Section

- 37. Dissolution of conservators and transfer of their property liabilities, etc., to Corporation.
- 38. Powers in respect of Merrow Downs and repeal of Order.
- 39. Byelaws as to Merrow Downs.
- 40. Continuance of proceedings.
- 41. Saving of agreements.
- 42. Books, etc., to remain evidence.
- 43. Saving for public and common rights.
- 44. Interpretation of Part VI.

PART VII
FINANCE AND MISCELLANEOUS

- 45. Power to borrow.
- 46. Establishment expenses.
- 47. False statements to obtain rent rebates, etc.
- 48. Notice of variation of rent, etc.
- 49. Godalming Navigation.
- 50. For protection of Godalming Corporation.
- 51. River Wey pence.

PART VIII
GENERAL

- 52. Confirming authority for byelaws.
- 53. For protection of statutory undertakers.
- 54. Local inquiries.
- 55. Arbitration.
- 56. The appointed day.
- 57. Restriction on right to prosecute.
- 58. Appeals.
- 59. Protection of members and officers of Corporation from personal liability.
- 60. Application of general provisions of Act of 1936.
- 61. Saving for town and country planning.
- 62. Repeal.
- 63. Costs of Act.

SCHEDULE:

Sections of Act of 1936 applied—

Part I—Sections applied to this Act except to sections 22 and 23.

Part II—Sections applied to Part III of this Act.

Part III—Sections applied to section 4 and Part III of this Act.